RESOLUTION NO. 1243-26

RESOLUTION OF THE BOARD OF TRUSTEES OF THE WINTERS JOINT UNIFIED SCHOOL DISTRICT ORDERING A SCHOOL BOND ELECTION ON NOVEMBER 3, 2026, REQUESTING CONSOLIDATION WITH OTHER MEASURES OCCURRING ON NOVEMBER 3, 2026, AND AUTHORIZING NECESSARY ACTIONS IN CONNECTION THEREWITH

WHEREAS, the Board of Trustees (the "Board") of the Winters Joint Unified School District (the "District"), within the Counties of Yolo and Solano (the "Counties") is authorized to order elections within the District and to designate the specifications thereof, pursuant to Sections 5304 and 5322 of the California Education Code ("Education Code") and is specifically authorized to order elections for the purpose of submitting to the electors the question of whether bonds of the District shall be issued and sold for the purpose of raising money for the purposes hereinafter specified, pursuant to Section 15100 *et seq.* of the Education Code; and

WHEREAS, pursuant to section 18 of Article XVI and section 1 of Article XIII A of the California Constitution (also known as "Proposition 39"), and Section 15266 of the Education Code, school districts may seek approval of general obligation bonds and levy an *ad valorem* tax to repay those bonds upon a fifty-five percent (55%) vote of those voting on a proposition for that purpose, provided certain accountability measures are included in the proposition; and

WHEREAS, a bond measure will benefit the District's local schools only, and no funds may be taken away by the State or other school districts; and

WHEREAS, any Proposition 39 local bond measure proposed by the District is legally required to include mandatory taxpayer protections, including an independent citizens' oversight committee and mandatory audits to ensure funds are spent as promised and that none of the money is spent on school operating expenses such as administrators' salaries or pensions; and

WHEREAS, the Board deems it necessary and advisable to submit such a bond proposition to the electors to be approved by fifty-five percent (55%) of the votes cast; and

WHEREAS, such a bond election must be conducted concurrent with a statewide primary election or general election, or at a regularly scheduled local election, as required by Section 15266 of the Education Code, and on November 3, 2026, a statewide general election is scheduled to occur throughout the District; and

WHEREAS, pursuant to Section 15270 of the Education Code, if the measure is approved by the voters, bonds may only be issued if the tax rate levied to meet the debt service requirements would not exceed sixty dollars ($60) per year per one hundred thousand dollars ($100,000) of taxable property when assessed valuation is projected by the District to increase in accordance with Article XIIIA of the California Constitution, and the current estimated and projected highest tax rate is expected to be forty-nine dollars ($49) per one hundred thousand dollars ($100,000); and

WHEREAS, the estimated tax rates, duration of tax collection, and total estimated amount of debt service are described in the Tax Rate Statement contained in **Exhibit C** hereto; and

WHEREAS, Section 9400 *et seq.* of the California Elections Code requires that a tax rate statement be contained in all official materials, including any ballot pamphlet prepared, sponsored or distributed by the District, relating to the election; and

WHEREAS, the Board now desires to authorize the filing of ballot arguments in favor of the proposition to be submitted to the voters at the election; and

WHEREAS, the Counties are requested to, among themselves, coordinate and identify, by mutual agreement, how to provide for performance of the duties incident to the preparation for and holding of the election, pursuant to Education Code section 5303.

NOW, THEREFORE, be it resolved, determined and ordered by the Board of Trustees of the Winters Joint Unified School District as follows:

Section 1. Specifications of Election Order. Pursuant to Sections 5304, 5322, 15100 *et seq.*, and Section 15266 of the Education Code, an election shall be held within the District on November 3, 2026, for the purpose of submitting to the registered voters of the District the full ballot proposition contained in **Exhibit B** ("Full Ballot Text"), which Full Ballot Text is hereby approved.

Section 2. Request to County Officers to Conduct Election; Cost of Election. The Yolo County Board of Supervisors and the Solano County Board of Supervisors ("Boards of Supervisors") are hereby requested to allow and order the Yolo County Elections Department and the Solano County Registrar of Voters (the "County Registrars") to provide for the performance of their respective duties, and pursuant to Section 5303 and Section 5322 of the California Education Code, to take all steps to call and hold the election in accordance with law and these specifications. The District will reimburse the Counties for costs associated with the election as required by law.

Section 3. Consolidation of Election and Canvass of Vote.

(a) Pursuant to Section 5342 of the Education Code and Section 10403 et seq. of the Elections Code, the election is requested to be consolidated with other elections occurring on November 3, 2026.

(b) The Boards of Supervisors are authorized and requested to canvass the returns of the election, as necessary, pursuant to Section 10411 of the California Elections Code.

Section 4. Abbreviation of Proposition/Ballot Label. Pursuant to Sections 13119 and 13247 of the California Elections Code and Section 15122 of the Education Code, the Board hereby directs the County Registrars to use the ballot measure summary ("Ballot Label") that is attached hereto as **Exhibit A**. The Ballot Label shall function merely as an abbreviation of the Full Ballot Text and does not stand alone as a complete and binding statement of the measure, nor is it possible for the Ballot Label to contain all of the project and financial information a voter might wish to consider in casting a vote. Voters are urged to review the Full Ballot Text and the Tax Rate Statement to obtain a complete understanding of the measure, including all of the financial projections and estimates upon which the measure is based.

Section 5. Voter Pamphlet/Sample Ballot. The County Registrars are hereby requested to take the following actions with regard to the voter information pamphlet (the "Voter Information Pamphlet") to be distributed to voters pursuant to Section 13307 of the Elections Code:

(a) To print the Full Ballot Text (**Exhibit B** hereto), without Exhibit references, in the Voter Information Pamphlet in its entirety. In the event the Full Ballot Text is not reprinted in the Voter Information Pamphlet in its entirety, the County Registrars are hereby requested to print, immediately below the impartial analysis of the bond proposition, in no less than 10-point boldface type, a legend substantially as follows:

> *"The above statement is an impartial analysis of Measure ___. If you desire a copy of the measure, please call the _____ County Elections Department at _____ and a copy will be mailed at no cost to you."*

(b) In accordance with Education Code Section 15122.5, to print in the Voter Information Pamphlet the following statement:

> *"Approval of Measure ___ does not guarantee that the proposed project or projects in the Winters Joint Unified School District that are the subject of bonds under Measure ___ will be funded beyond the local revenues generated by Measure ___. The school district's proposal for the project or projects may assume the receipt of matching state funds, which could be subject to appropriation by the Legislature or approval of a statewide bond measure."*

Section 6. Accountability Measures. Pursuant to legal requirements, and as specified in the Full Ballot Text, the Board certifies that the District:

(a) Has evaluated the facilities needs of the District and has evaluated safety, class size reduction and information technology needs in developing the Bond Project List contained in the Full Ballot Text;

(b) Will appoint a new or empower an existing independent citizens' oversight committee (the "Citizens' Oversight Committee") to ensure that bond proceeds are expended only for the school facilities projects described in the Bond Project List, in accordance with Education Code section 15278 *et seq.*;

(c) Will conduct or cause to be conducted an annual, independent performance audit to ensure that the bond proceeds have been expended only on the school facilities projects described in the Bond Project List;

(d) Will conduct or cause to be conducted an annual independent financial audit of the bond proceeds until all of those proceeds have been spent for the school facilities projects described in the Bond Project List; and

(e) Shall take all actions to establish an account in which proceeds of the sale of the bonds will be deposited, and to cause a report to be filed with the Board no later than each January 1 identifying proceeds received and expended in the past fiscal year and the status of any project funded or to be funded with bond

proceeds. The first report shall be due no later than January 1 of the first year after which bonds have been issued and proceeds spent.

Section 7. Required Vote. Pursuant to Section 18 of Article XVI and Section 1 of Article XIII A of the State Constitution, the above proposition shall become effective upon the affirmative vote of at least fifty-five percent (55%) of those voters voting on the proposition.

Section 8. Delivery of Order of Election to County Officers. The Clerk of the Board is hereby directed to deliver or cause to be delivered, ***no later than the submission date of July 1, 2026***, with respect to Yolo County and **August 7, 2026**, with respect to Solano County, one copy of this Resolution to the County Registrar with the Tax Rate Statement (in substantially the form attached hereto as **Exhibit C**), completed and signed by the Superintendent or the Superintendent's designee, and shall file a copy of this Resolution with the respective Clerks of the Boards of Supervisors.

Section 9. Ballot Arguments. The members of the Board are hereby authorized to prepare and file with each of the County Registrars a ballot argument in favor of the proposition contained in **Exhibit B** hereto, and/or a rebuttal argument, within the time established by such County Registrar.

Section 10. Intention to Reimburse. The District may incur costs associated with bond-funded projects described in **Exhibit B** hereto prior to the issuance of bonds. For purposes of establishing compliance with the requirements of Section 1.150-2 of the regulations of the U.S. Treasury Department, the Board hereby declares its official intent to use proceeds of the bonds to reimburse itself for lawful expenditures on capital projects as described on the Bond Project List, up to a maximum principal amount of $29.9 million.

Section 11. Further Authorization. The Superintendent and the Associate Superintendent of Business Services (each, a "District Representative") are hereby authorized and directed, individually and collectively, to do any and all things that they deem necessary or advisable in order to effectuate the purposes of this Resolution, including, without action of the Board, non-substantive modification of the Full Ballot Text, the Ballot Label, and the Tax Rate Statement if either determines such modifications are necessary to conform the measure to legal requirements or correct clerical errors, and are in the District's best interests. This Resolution and all of its Exhibits that are filed with the County Registrars by a District Representative shall constitute the final, binding ballot measure of the District.

Section 12. Effective Date. This Resolution shall take effect upon its adoption.

PASSED AND ADOPTED this 25th day of June, 2026, by the following vote:

AYES: DAVIS, GREEN, MICHAEL, TROTT, ZARAGOZA

NAYS: _____

ABSTAIN: _____

ABSENT: _____

WINTERS JOINT UNIFIED SCHOOL DISTRICT

[redacted]

Joedy Michael, Board President

Attest:

[redacted]

Rody Boonchouy, Ed.D., Board Secretary

EXHIBIT A

BALLOT LABEL

"To improve the quality of education; repair or replace leaky roofs; modernize/renovate outdated classrooms, restrooms and school facilities; and replace deteriorating plumbing and sewer systems; shall Winters Joint Unified School District's measure authorizing $29,900,000 in bonds, at legal interest rates, and levying approximately $49 per $100,000 of assessed valuation (raising $1,600,000 annually) while bonds are outstanding, be adopted, with a Board-appointed citizens' oversight committee and annual independent audits to assure proper expenditure of funds?"

Bonds – Yes _____ Bonds – No _____

EXHIBIT B

FULL BALLOT TEXT

Measure ___
[Letter designation to be assigned by Registrar of Voters]

By approval of this measure by at least fifty-five percent (55%) of the registered voters voting thereon, the Winters Joint Unified School District shall be authorized to issue and sell bonds of up to $29,900,000 in aggregate principal amount to provide financing for the specific school facilities projects listed below in the Bond Project List, subject to all of the accountability safeguards specified herein.

SECTION I: KEY FINDINGS

- Winters Joint Unified School District has provided a high-quality education to students in the community of Winters over its long history.
- Bonds are the primary means by which all school districts are able to keep their school buildings and classrooms in good, safe repair, equipped to support changing educational standards, methods and approaches.
- The District cannot rely on the State of California to fund school facility improvements and the limited State dollars available for facility upgrades often require local matching funds that could be provided by a local bond measure.
- This bond measure will benefit local schools only and no funds can be taken away by the State or other school districts, and by law, no money can be used for administrator salaries or pensions.
- This bond measure requires strict fiscal accountability protections including mandatory annual audits and an independent citizens' oversight committee comprised of local residents to ensure funds are managed and spent properly.

SECTION II: ACCOUNTABILITY MEASURES

The provisions in this section are included in this proposition in order that the voters and taxpayers of the District may be assured that their money will be spent to address specific facilities needs of the District, all in compliance with the requirements of Article XIII A, section 1(b)(3) of the State Constitution, and the Strict Accountability in Local School Construction Bonds Act of 2000 (codified at Section 15264 *et seq.* of the California Education Code).

Evaluation of Needs. The Board of Trustees of the Winters Joint Unified School District (the "Board of Trustees" or "Board") has evaluated the facilities needs of the District and has identified projects to finance from a local bond measure at this time. The Board of Trustees has certified that it has evaluated safety, class size reduction and information technology needs in developing the Bond Project List.

Independent Citizens' Oversight Committee. The Board of Trustees shall appoint a new or empower an existing independent Citizens' Oversight Committee in accordance with Education Code sections 15278-15282 and applicable Board policy, to ensure bond proceeds are expended only for the school facilities projects listed in the Bond Project List. The

committee shall be established within sixty (60) days of the date when the Board of Trustees enters the results of the election in its official minutes.

Annual Performance Audit. The Board of Trustees shall conduct or cause to be conducted an annual, independent performance audit to ensure that the bond proceeds have been expended only on the school facilities projects described in the Bond Project List.

Annual Financial Audit. The Board of Trustees shall conduct or cause to be conducted an annual, independent financial audit of the bond proceeds until all of those proceeds have been spent.

Annual Report to Board. Upon approval of this measure and the sale of any bonds approved, the Board of Trustees shall take actions necessary to establish an account in which proceeds of the sale of bonds will be deposited. As long as any proceeds of the bonds remain unexpended, the Superintendent shall cause a report to be filed with the Board of Trustees no later than January 1 of each year, commencing on the first January 1 after bonds have been issued and proceeds spent, stating (1) the amount of bond proceeds received and expended in the past fiscal year, and (2) the status of any project funded or to be funded from bond proceeds. The report may be incorporated into the annual budget, annual financial report, or other appropriate routine report to the Board.

SECTION III: BOND PROJECT LIST

This Bond Project List, which is an integral part of this measure, describes the specific projects the District proposes to finance with proceeds of the bonds. All information contained within this "Section III: Bond Project List" comprises the list and description of permissible projects and expenses that may be paid from bond proceeds.

In order to meet all identified facility needs, the District intends to complete projects using a combination of funding sources, including joint use funds or contributions, development impact fees, and State funding (if available). The District will pursue State matching funds if and when they become available, and if received, they will be used for projects on the Bond Project List or other high priority capital outlay expenditures as permitted by law. Approval of this measure does not guarantee that all projects on this Bond Project List at all listed sites will be funded beyond the local revenues generated by this measure. The District's proposal for the projects assumes the receipt of some state matching funds, which could be subject to appropriation by the Legislature or approval of a statewide bond measure. Bond funds may be used to meet any matching share contribution requirements.

Proceeds from the sale of bonds authorized by this measure shall be used only for the construction, reconstruction, rehabilitation, replacement, furnishing and equipping of school facilities, and the acquisition or lease of real property for school facilities, all as listed on the Bond Project List. All projects to be financed with bonds authorized by this measure listed on the Bond Project List have been determined by the District to be "school facilities" as that term is used in the California Constitution. "School facilities" include projects at school sites as well as administrative and teacher/staff support facilities which are necessary for, and related to, the delivery of high-quality education services. Projects listed below may be completed at any and all properties, school sites and facilities where such project is determined necessary, and projects are authorized to be performed at each and all of the District's schools, sites and facilities, including administrative and ancillary support facilities, whether owned, leased or yet to be acquired.

Specific projects to be funded by the bond measure include the following:

- Repair or replace leaky roofs
- Repair or replace deteriorating plumbing and sewer systems
- Modernize/renovate outdated classrooms, restrooms and school facilities
- Make health, safety and accessibility improvements
- Improve student access to computers and modern technology
- Upgrade athletic fields and facilities for school and community use
- Repair or replace outdated heating, ventilation and air conditioning systems with building code compliant, energy efficient systems
- Federal and State-mandated accessibility upgrades, including Americans with Disabilities Act (ADA) and California accessibility code requirements for site access, parking, staff and student restrooms, relocation of some existing electrical devices, drinking fountains, playground equipment, and other required improvements
- Make security improvements throughout the District, such as installing security fencing, cameras, lighting, and fire alarm and security systems
- Repair and upgrade roofs, walls, floors and related building envelope components
- Make facility improvements to increase the District's energy efficiency, including replacing outdated lighting and windows
- Upgrade school site parking, utilities and grounds
- Acquire real property for school facilities
- Replace existing wiring systems to meet current electrical and accessibility codes and increased capacity
- Federal and State-mandated occupational safety and health upgrades, including OSHA and Cal/OSHA requirements, such as playground equipment replacement
- Abate and remove hazardous materials identified prior to or during construction
- Repair, replace and/or upgrade paved surfaces, turf, and other grounds to eliminate safety hazards and improve outside instructional areas

Listed projects, repairs, improvements, rehabilitation projects and upgrades will be completed only as needed, and the listing of projects does not imply a particular prioritization among such improvements. Projects may be done in phases, based on Board of Trustees priorities and available funding. Listed projects may be completed at any and all District schools, sites, properties (owned, leased or yet to be acquired) and education buildings where such project is determined necessary. Bond projects are anticipated to provide benefit to all users of school facilities, sites and buildings, including charter schools that occupy school campuses, community members and other organizations.

Decisions regarding the scope, function, timing, location, prioritization or other facets of project implementation for school facility projects listed on the Bond Project List will be made solely by the Board of Trustees by subsequent action, including the interpretation, meaning and intent of each listed project. Where terms such as "renovate," "upgrade," "replace," "improve" and "repair" are used in the Bond Project List, the Board of Trustees has the discretion to determine the best method for accomplishing the project's objective, including the use of new construction. For any listed project involving renovation or modernization of a building or the major portion of a building, the District may proceed with

new replacement construction instead (including any necessary demolition), if the District determines that replacement and new construction is more practical than renovation, considering the building's age, condition, expected remaining life, comparative cost and other relevant factors. In addition, where feasible, projects may be completed in partnership with other public or private agencies on a joint use basis using bond proceeds, subject to federal tax rules and regulations.

Each project is assumed to include its share of costs of bond issuance, architectural, engineering, legal and similar planning costs; litigation costs; construction management; bond project consultants; staff development and training expenses directly associated with the use of new bond-funded equipment, technology and systems; the furnishing and equipping of all projects, including equipment to maintain facilities in a safe and clean condition; and a customary contingency for unforeseen design and construction costs. Payment of the costs of preparation of facilities planning and project implementation studies, feasibility and assessment reviews, master planning, environmental studies, permit and inspection fees, Division of State Architect (DSA) - related requirements, studies and assessments, including ADA and seismic, and temporary housing and relocation costs for dislocated programs or activities caused or necessitated by projects on the Bond Project List are permissible bond expenditures. Land may be acquired for any project, and all projects may be furnished and equipped using bond proceeds to ensure the functionality and usability of facilities and sites constructed or reconstructed with bond proceeds. Bond proceeds may be used to retire any interim funding incurred to advance fund projects described on the Bond Project List.

The final cost of each project will be determined as plans are finalized and projects are completed. Based on the final costs of each project, certain of the projects described above may be delayed or may not be completed. Necessary site preparation, grading or restoration may occur in connection with acquisition of property, new construction, modernization, renovation or remodeling, or installation or removal of modular classrooms, including ingress and egress, removing, replacing or installing irrigation, utility lines, trees and landscaping, relocating fire access roads and acquiring any necessary easements, leases, licenses or rights of way to the property.

SECTION IV: ADDITIONAL SPECIFICATIONS

Allowable Expenses. Proceeds from the sale of Bonds authorized by this proposition shall be used only for the construction, reconstruction, rehabilitation or replacement of school facilities on the Bond Project List, including the furnishing and equipping of said school facilities, or the acquisition or lease of real property for said school facilities, and not for any other purpose.

No Operating Expenses. Bond proceeds cannot be used for teacher or administrator salaries and other school operating expenses in accordance with applicable law.

Single Purpose. All of the purposes enumerated in this proposition shall be united and voted upon as one single proposition, pursuant to Section 15100 of the California Education Code, and all the enumerated purposes shall constitute the specific single purpose of the bonds and proceeds of the bonds shall be spent only for such purpose.

Other Terms of the Bonds. The bonds may be issued and sold in several series, and in accordance with a financing plan determined by the Board of Trustees pursuant to requirements of law. When sold, the bonds shall bear interest at an annual rate not exceeding the statutory maximum and with a maximum term not exceeding the statutory maximum, provided that the weighted average maturity of bonds sold will not exceed one hundred twenty percent (120%) of the average reasonably expected economic life of the projects being

financed or as otherwise provided by federal tax law. Bond funds may be used to reimburse the District for Bond Project List expenditures incurred prior to the election and bond issuance, in accordance with federal tax law.

Attention of all voters is directed to the fact that the financial information contained in this measure is based upon the District's projections and estimates only, which are not binding upon the District, nor are the summary or average payment estimates, if any, provided in the Ballot Label. The actual tax rates, debt service and the years in which they will apply may vary from those presently estimated, due to variations from these estimates in the timing of bond sales, the amount of bonds sold and market interest rates at the time of each sale, and actual assessed valuations over the term of repayment of the bonds. The dates of sale and the amount of bonds sold at any given time will be determined by the District based on need for construction funds and other factors. The actual interest rates at which the bonds will be sold will depend on the bond market at the time of each sale. Actual future assessed valuation will depend upon the amount and value of taxable property within the District as determined by the County Assessors of Yolo County and Solano County (together, the "County Assessors") in the annual assessment and the equalization process.

In preparing this information, the District obtained reasonable and informed projections of assessed property valuations that took into consideration projections of assessed property valuations made by the County Assessors, if any, in accordance with Education Code Section 15100(c).

EXHIBIT C

TAX RATE STATEMENT

An election will be held within the boundaries of Winters Joint Unified School District ("District") on November 3, 2026 to authorize the sale of up to $29,900,000 in bonds to finance facilities as described in the measure. If the bonds are approved, the District expects to sell the bonds in multiple series. Principal and interest on the bonds will be payable from the proceeds of tax levies made upon the taxable property located within the District. The following information is provided in compliance with Sections 9400 to 9404, inclusive, of the California Elections Code.

1. The best estimate from official sources of the average annual tax rate that would be required to be levied to fund this bond issue over the entire duration of the bond debt service, based on assessed valuations available at the time of the election and a projection based on experience within the same jurisdiction and other demonstrable factors, is estimated to be $46.00 per $100,000 of assessed valuation. The final fiscal year in which the tax is anticipated to be collected is 2061-62.

2. The best estimate from official sources of the highest tax rate that would be required to be levied to fund this bond issue, and an estimate of the year in which that rate will apply, based on assessed valuations available at the time of filing this statement, and a projection based on experience within the same jurisdiction and other demonstrable factors, is estimated to be $49.00 per $100,000 of assessed valuation first occurring in fiscal year 2027-28.

3. The best estimate from official sources of the total debt service, including the principal and interest, that would be required to be repaid if all the bonds are issued and sold is $58,600,000.

Voters should note that the estimated tax rate is based on the ASSESSED VALUE of taxable property on the Yolo County and Solano County official tax rolls, not on the property's market value. Property owners should consult their own property tax bills to determine their property's assessed value and any applicable tax exemptions.

Attention of all voters is directed to the fact that the foregoing information is based upon the District's projections and estimates only, which are not binding upon the District. The actual tax rates, debt service and the years in which they will apply may vary from those presently estimated, due to variations from these estimates in the timing of bond sales, the amount of bonds sold and market interest rates at the time of each sale, and actual assessed valuations over the term of repayment of the bonds. The dates of sale and the amount of bonds sold at any given time will be determined by the District based on need for construction funds and other factors. The actual interest rates at which the bonds will be sold will depend on the bond market at the time of each sale. Actual future assessed valuation will depend upon the amount and value of taxable property within the District as determined by the County Assessors of Yolo County and Solano County in the annual assessment and the equalization process.

Winters Joint Unified School District

[redacted]rintendent